

King Henry VI granted a 20-year monopoly on the making of stained glass to John of Utynam, who had been invited to England from his native Flanders to make stained glass windows for Eton College.

Ninety years later, King Henry VIII's secretary Thomas Cromwell granted a 20-year monopoly on growing silk to Venetian silk merchant Antonio Guidotti in an attempt to persuade Venetian silk-makers to come to England. The practice of granting monopolies had become popular with English monarchs because they could charge heavily for the privilege. Consequently, more and more industries came into the realm of exclusive rights, including even such basics as salt and starch.

By the end of the 16th century, the stranglehold of monopolies had become so extreme that they provoked bitter resentment. In 1601, the English Parliament forced Queen Elizabeth I to hand over the power to regulate monopolies and eliminate some of the most restrictive ones. A Committee of Grievances, led by senior judge and politician Sir Edward Coke, was set up to bring monopolies

The first English patent

The first patent granted in England was to Venetian engineer Jacopo Aconcio. Originally from northern Italy, Aconcio had moved to Strasbourg. There, he was recruited by Sir William Cecil, who was Queen Elizabeth I's secretary of state. Aconcio came to England in 1559 to bring Venetian engineering expertise to improve English fortifications at a time when Elizabeth's regime was very vulnerable. He went on to

review and redesign some of the fortifications at Berwick Castle, on the England–Scotland border.

Just a few months after his arrival, Aconcio applied for a patent for a variety of machines using water wheels and for furnaces for dyers and brewers. In his patent application, he argued that “those who by searching have found out things useful to the public should have some fruit of their rights and labors.” Aconcio's patent was granted in 1565.

under control. And yet Elizabeth's successor James I continued to issue patents that established monopolies.

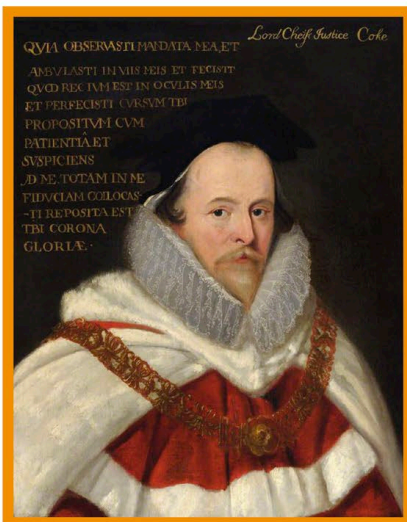
As anger rose, James I promised to abolish the three worst monopolies, but Parliament had had enough. In 1621, Coke introduced a Statute of Monopolies, which became law 3 years later, in a trail-blazing assertion of business interests in opposition to the absolute power of an English monarch.

The Statute of Monopolies

Coke's Act made all past, present, and future patents and monopolies in England null and void. It also ordered that patents could not be used by the Crown for farming out the administration of justice and criminal law to private individuals and companies—asserting that only Parliament could do this.

There was one key exception to the voiding of all patents. This section preserved, crucially, the patent on original inventions. But

the exclusion lasted only 14 years, so inventors could be granted a patent giving them exclusive rights for 14 years if they were “the true and first inventor.” Patents could also be granted for any entirely new method of manufacture. Although it was more than a century before the courts developed a coherent way of implementing patent law, the Statute of Monopolies was a landmark in England's evolution from a feudal to a capitalist economy. And its provisions—doubtless influenced by the Venetian Patent Statute—have shaped patent laws ever since. ■



English barrister, judge, and politician Sir Edward Coke's Statute of Monopolies, which only permitted patents to be granted for truly new inventions, became law in 1624.

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The King himself should be under no man but under God and the Law.

Sir Edward Coke
*Institutes of the Lawes
of England, 1628–1644*

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